

TENTATIVE RULINGS
Judge Lindsey E. Martínez, Dept. C24

“Civility is not about etiquette. This is not a matter of bad manners. Incivility slows things down, it costs people money – money they were counting on their lawyers to help them save. And it contravenes the Legislature’s directive that ‘all parties shall cooperate in bringing the action to trial[.]’ (Code Civ. Proc., § 583.130.)” (*Masimo Corp. v. The Vanderpool Law Firm, Inc.* (2024) 101 Cal. App. 5th 902, 911; *see generally* OCBA Civility Guidelines.)

- The court encourages remote appearances to save time and reduce costs.
- All hearings are open to the public.
- You must provide your own court reporter and interpreter, if required.
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk.
- The court will hold a hearing. The court may rule differently at the hearing. (*See Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Hearing Date: July 20, 2026 at 1:30 pm

Rulings Posted: 7/20/26 at 12:45 pm

#	Case Name	Tentative
301	<i>Sanders vs. California Department of Transportation</i>	Defendant Robert Betha’s demurrer to the fourth amended complaint (4AC) of plaintiff Marvin Sanders is SUSTAINED without leave to amend as to the 1st through 9th, and 11th causes of action and OVERRULED as to the 10th cause of action. Defendant’s request for judicial notice is GRANTED. (See Evid. Code § 452, subd. (c).) <u>1st, 3rd, 4th causes of action (discrimination, retaliation and failure to prevent):</u> The 4AC fails to state facts sufficient to constitute these claims. Individual supervisory employees are not personally liable for employment discrimination or

	retaliation under the California Fair Employment and Housing Act, Government Code section 12900 et. seq. (FEHA). (See <i>Reno v. Baird</i> (1998) 18 Cal.4th 640, 645-646; <i>Janken v. GM Hughes Electronics</i> (1996) 46 Cal.App.4th 55, 62; <i>Jones v. Lodge at Torrey Pines Partnership</i> (2008) 42 Cal.4th 1158, 1173.) <u>2nd cause of action (workplace harassment):</u> The 4AC fails to state facts sufficient to constitute this claim. Plaintiff's claim is time-barred because he did not file suit against Defendant until August 18, 2025, more than two years after he received the right-to-sue notice from the California Civil Rights Department (CRD). (See Gov. Code § 12965, subd. (c)(1)(C)[a civil action must be brought one year from the date of CRD right-to-sue notice]; 4AC ¶ 22.3, RJN, Ex. 1.) The relation back doctrine does not apply because the allegations in the original complaint show Plaintiff was not ignorant of Defendant's name or the facts giving rise to the harassment claim. (See Code of Civ. Proc. § 474; <i>Marasco v. Wadsworth</i> (1978) 21 Cal.3d 82, 88 [fictitious name is proper is plaintiff is unaware of defendant's identity or plaintiff was unaware of culpability]; ROA 2 – Compl. ¶¶ 3, 25.) <u>5th cause of action (assault and battery):</u> The 4AC fails to state facts sufficient to constitute this claim. Plaintiff's claim is time-barred because he did not file suit against Defendant until August 18, 2025, more than five years after the date of the alleged injury. (Lab. Code § 5405 [statute of limitations is one year from the date of injury]; 4AC ¶ 62.) <u>6th cause of action (violation of Ralph Civil Rights Act):</u> The 4AC fails to state facts sufficient to constitute this claim. Plaintiff's claim is time-barred because he did not file suit against Defendant until August 18, 2025, more than five years after the alleged incident. (Code of Civ. Proc.
--	--

	§ 338, subd. (n) and Civ. Code § 52, subd. (b)(2) [statute of limitations is three years]; 4AC ¶ 70.) The relation back doctrine does not apply because Plaintiff never alleged any facts about the July 28, 2020 incident in the original complaint. (See <i>Barrington v A.H. Robins Co.</i> (1985) 39 Cal.3d 146, 154 [for the relation back doctrine to apply, the amended complaint must be based on the same operative facts alleged in the original complaint].) <u>7th and 8th causes of action (violation of Labor Code §§ 98.6 and 1102.5):</u> The 4AC fails to state facts sufficient to constitute these claims. Labor Code §§ 98.6 and 1102.5 applies to employers, i.e., individual supervisory employees are not personally liable for violations of these provisions. (See Labor Code §§ 98.6, subd. (b)(2),(3), 1102.5, subds. (a), (b); <i>Mewalla v. Middleman</i> (N.D. Cal. 2022) 601 F. Supp.3d 574, 608-609; <i>Tillery v. Lollis</i> (E.D. Cal. 2015) 2015 WL 487311, *8-9; see also <i>Jones v. Lodge at Torrey Pines Partnership</i> (2008) 42 Cal.4th 1158, 1164-1168.) <u>10th cause of action (intentional infliction of emotional distress):</u> The 4AC states facts sufficient to constitute this cause of action. The workers compensation exclusivity rule does not bar a suit for emotional distress damages attributed to unlawful discrimination, harassment or other misconduct that “exceeds the normal risks of the employment relationship.” (<i>Saunders v. Sally Beauty Supply LLC</i> (C.D. Cal. 2020) 2020 WL 1847620, * 2; 4AC ¶¶ 93, 95.) <u>9th and 11th causes of action:</u> Plaintiff concedes the 4AC fails to state sufficient facts to constitute these causes of action. Defendant shall file an answer by 8/3/26. The court sets a status conference for 8/10/26 at 8:45am in Dept. C24. Defendant shall give notice.
--	---